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IN THE DISTRICT COURT OF THE FOURTH JUDICIAL DISTRICT IN AND FOR
THE COUNTY OF UTAH, STATE OF UTAH

THE STATE OF UTAH
Plaintiff,
vs.
Tyler Robinson
Defendant.

Notice
Case No. 251403576

COMES NOW Erika Kirk, by and through undersigned counsel, and respectfully files this Notice concerning media and public access to the proceedings. As the victim representative, Ms. Kirk asserts her right under Utah Code § 77-38-4(1)(b) to be heard on matters affecting her interests. Beyond the filing of this Notice, Ms. Kirk does not seek to be heard further by the Court on this issue.

As this Court is aware, this matter has received significant public attention. This public attention cannot be ignored. And although it is critical that this Court balance the defendant's right to a fair trial with the public's First Amendment right of access to judicial proceedings, any request, by either party, to essentially close these court proceedings from the public eye should be denied.

The public assassination of Mr. Kirk has profoundly affected many. Without meaningful access to these proceedings, the public will be unable to directly observe and evaluate the evidence presented, leaving a critical gap in understanding the circumstances surrounding his death. In the absence of transparency, speculation, misinformation, and conspiracy theories are likely to proliferate, eroding public confidence in the judicial process. Such an outcome serves neither the interests of justice nor those of Ms. Kirk.

There is no adequate substitute for open proceedings. Accordingly, Ms. Kirk respectfully urges the Court to deny any unnecessary requests to limit public or media access and to ensure that courtroom proceedings remain open to the fullest extent consistent with the defendant's right to a fair trial.

DATED February 2, 2026

/s/ JEFFREY A. NEIMAN

JEFFREY A. NEIMAN

Attorney for Victim

CERTIFICATE OF DELIVERY

I certify that I e-filed a copy of the foregoing NOTICE, thereby providing notice to the parties in this case, on February 2, 2026.

/s/ JEFFREY A. NEIMAN

JEFFREY A. NEIMAN

Attorney for Victim